

Humanism and Truth: Valla Writes against the Donation of Constantine

Author(s): Riccardo Fubini

Source: *Journal of the History of Ideas*, Vol. 57, No. 1 (Jan., 1996), pp. 79-86

Published by: [University of Pennsylvania Press](#)

Stable URL: <http://www.jstor.org/stable/3653883>

Accessed: 21/06/2014 12:44

Your use of the JSTOR archive indicates your acceptance of the Terms & Conditions of Use, available at
<http://www.jstor.org/page/info/about/policies/terms.jsp>

JSTOR is a not-for-profit service that helps scholars, researchers, and students discover, use, and build upon a wide range of content in a trusted digital archive. We use information technology and tools to increase productivity and facilitate new forms of scholarship. For more information about JSTOR, please contact support@jstor.org.



University of Pennsylvania Press is collaborating with JSTOR to digitize, preserve and extend access to
Journal of the History of Ideas.

<http://www.jstor.org>

Humanism and Truth: Valla Writes against the Donation of Constantine

Riccardo Fubini

There has existed for a long time now in studies of Renaissance humanism (and not only as these have developed in a single country or disciplinary area) a tendency to consider from a prevalently formalist point of view what was instead an innovative and complex cultural experience. A particularly privileged position has been reserved for the *ars rhetorica*, which, considered in its “purely formal instrumentality,” has been treated as though immune from ideological contamination.¹ The fear of becoming entangled in matters of ideological interpretation may, in turn, give rise to new and more seriously flawed readings. Although this is a matter which I shall not now emphasize, it should be clear that when the interpretation of a text is limited to its “purely formal instrumentality,” the vacuum that results can be filled more easily with matter that is new and different. Ideology chased from the doorstep may yet sneak in through the window, sometimes completely stripped of its real historical context. However, what is more important to note here as a premise to my discussion is that, along with the formalism already referred to, one finds in recent studies a tendency to diminish or minimize the significance of writings that were celebrated by the historical traditions of the last century and felt to belong to a shared cultural, religious, or political legacy.

Among such writings the *De falso credita et ementita Constantini donatione* of Lorenzo Valla has certainly played an important part, beginning at least with the clamor that was raised on its behalf by Ulrich von Hutten and Martin Luther. Yet it is quite typical that the work’s most recent

Translation by Anastasia Ananson and William Connell.

¹ Salvatore I. Camporeale, “Lorenzo Valla e il *De falso credita donatione*. Retorica, libertà ed ecclesiologia nel ’400,” *Memorie domenicane*, n. s. 19 (1988), 221f. More recently, Carlo Ginzburg (“Préface” to Lorenzo Valla, *La Donation de Constantin*, translation and commentary by Jean-Baptiste Giard [Paris, 1993], x-xxi) has taken Valla’s treatise as pretext for discussing the supposed rhetorical character of the “proof” in historical writing.

editor, who has dedicated much careful research to Valla's treatise and its reception, should have attempted to disconnect the meaning of Valla's treatise in its own time from the influence it would later have, concluding that "the influence [of Valla's work] manifested itself in accents quite different from those that have resulted from [current] interpretation."² In the view of this scholar, at the time of the composition of Valla's work, Constantine's alleged "donation" was no longer a matter of contemporary relevance; rather, it furnished the theme for a brilliant exercise in legal rhetoric. He writes: "By then the Donation of Constantine was no longer an urgent theme for political theory. (*Die Konstantinische Schenkung war damals kein beherrschendes Thema der politischen Theorie mehr.*)"³

My discussion takes its cue from this point. Without dwelling at length on the various contributions of other scholars, I shall begin first by trying, on the basis of documentary evidence, to restore Valla's treatise to life, to the climate of its day, in order then to gather and present its meaning along interpretative lines I have already laid out elsewhere.⁴

According to that usually trustworthy Florentine chronicler, Giovanni Cavalcanti, Filippo Maria Visconti, duke of Milan, at the end of 1443 made a diplomatic *avance* toward Florence. Principal among the issues dividing the two powers had been the protection afforded by the regime of Cosimo de' Medici to Francesco Sforza, then holed up in his fiefdoms in the March of Ancona. The Duke now proposed that they should unite in common defense against the Pope, insofar as the latter was sovereign lord of the March. Beyond these particular circumstances, the accord was supposed to find its warrant in the partners' shared interest in affirming the superiority of civil over ecclesiastical jurisdiction. So the Duke, according to Cavalcanti, advanced his proposal with words that allow us to suspect an early but not surprising echo of Valla's treatise (first circulated in that very year): "It so happens that even if Constantine consigned to Sylvester so many and such rich gifts—which is doubtful, because such a privilege can nowhere be found—he could only have granted them for his [Sylvester's] lifetime, [because] the Empire takes precedence over any lordship." No differently from Valla, Duke Filippo Maria thought the sovereign impersonality of the

² Wolfram Setz, *Lorenzo Vallas Schrift gegen die Konstantinische Schenkung. De falso credita et ementita Constantini donatione. Zur Interpretation und Wirkungsgeschichte* (Tübingen, 1975); see my review in *Studi medievali*, ser. 3, 20 (1979), 221–28.

³ Wolfram Setz, "Einleitung" to Lorenzo Valla, *De falso credita et ementita Constantini donatione*, ed. Wolfram Setz, *Monumenta Germaniae Historica, Quellen zur Geistesgeschichte des Mittelalters*, X (Weimar, 1976), 15, cited hereafter as "Setz ed." The English translation and edition by Christopher Coleman, *The Treatise of Lorenzo Valla on the Donation of Constantine* (1922; rpt. Toronto, 1993), is cited below as "Coleman trans."

⁴ Riccardo Fubini, "Contestazioni quattrocentesche della Donazione di Costantino: Niccolò Cusano, Lorenzo Valla," in *Costantino il grande, dall'antichità all'umanesimo*, ed. Giorgio Bonamente and Franca Fusco (Macerata, 1992), I, 385–431.

law was the prerogative only of the Empire (and more generally of civil power), as could be seen from the fact that the Popes, with each succession, had to confirm their vicars: “and for this reason you see why the Church is without civil law.”⁵

A not dissimilar idea we find expressed a few years later on another, wider stage. At the beginning of 1452 the emperor elect, Frederick III, came to Rome for his coronation by Pope Nicholas V. (His secretary and travel-companion was Aeneas Sylvius Piccolomini.) At Rome he met with the solemn embassy of the new duke of Milan, Francesco Sforza, who was expecting to obtain the investiture of the duchy. The chief argument used by the Milanese ambassadors was once again that of the common interest in taking action to the detriment of papal claims to jurisdiction. The Emperor stood to gain in that he would receive, not from the Pope but from the Duke (or, secondarily, from the Archbishop of Milan), the title of King of Lombardy. It was a procedure that surely would also have pleased the Prince Electors of Germany, who, “whenever they hear that Your Majesty should take his crown from the Pope, [urge] that action should be taken against jurisdiction detrimental to the Empire, especially since by the same reasoning jurisdiction over Germany might be ceded.” It was necessary anyway to distrust the Church, since “priests were always trying to increase their own jurisdictions, while disregarding those of the Empire.” It is interesting that in response, as Aeneas Sylvius told the ambassador, Nicholas V affirmed the doctrine of a universal empire to which the ancient kingdom of Lombardy had belonged, making menacing allusion to the doctrine of the *translatio imperii*: “In the past the Apostolic See had the power to transfer the Empire from the Greeks to Germany: in this same way should we not have the power to decide over a crown?”⁶

⁵ Giovanni Cavalcanti, *Nuova opera (Chronique florentine inédite du XV siècle)*, ed. Antoine Monti (Paris, 1989), 134: “Avegnadio che, se Gostantino avesse a Silvestro consegnato le tante e ricche dote—che se ne dubita, perché non se ne truova nullo brivilegio—no’ le potea dare se non vivente lui, avegnadio che lo’impero è uficio più avaccio che non è signoria ... e però vedete voi perché la Chiesa è priva di ragione civile.” Note the distinction between the legal and impersonal government of the “Empire” and the merely personal government of a “signoria.” On Cavalcanti cf. Riccardo Fubini, *Italia quattrocentesca. Politica e diplomazia nell’età di Lorenzo il Magnifico* (Milan, 1994), 79.

⁶ “... quotienscunque intendessino che la Maestà Vostra pigliasse corona dal Papa, che iure si dovesse pigliare de le iurisdictione in detrimento de lo Imperio, maxime perché eadem ratione poterà concedere quelle de Alemagna”; “li sacerdoti sempre tendevano ad ampliare loro iuriditioni, non guardando quelle del Imperio”; “[the Kingdom of Lombardy], el quale è incorporato ne lo dominio de lo Imperio universale”; “La Sedia Apostolica alias ha havuto possanza de transferire da’ Greci in Germania lo Imperio, et in questo modo non haverimo possanza de dispensare sopra una corona?” The full report of the Milanese ambassadors (Niccolò Arcimboldi, Tommaso da Rieti, Sceva de Curte, Jacopo Trivulzio, Nicodemo da Pontremoli), dated Rome, 16 March 1452, is in Paris, Bibliothèque Nationale, Manuscrits italiens 1586, fols. 53^r-55^r, quoted here from 53^r and 54^r. On the question, compare F. Cusin, “L’impero e la successione degli Sforza ai Visconti,” *Archivio storico lombardo*, 63 (1936), 3-116.

In accordance with this theocratic conception, the Donation of Constantine had become doctrine in a way that was complementary with the *translatio*, and both the one and the other were refuted by Nicholas of Cusa (Cusanus), not without direct repercussions for Valla. In Cusanus's writing we find especially a secularized conception of the Empire, no longer "universal," as in traditional politico-juridical doctrine, but as a self-sufficient complex of territorial principates. And it was just on this point that he was directly echoed—though in a disguised manner—in the treatise of Valla.⁷

Now the principal problem for the evaluation and understanding of the attack of Valla on the Donation of Constantine rests in our need to grasp its relation to the treatise of Cusanus, *De concordantia catholica*, presented seven years previously at the Council of Basel. (Cusanus's work dates from 1433, Valla's from 1440.) Often doubted, or proposed only doubtfully, by Valla scholars, such a direct relationship can, in my view, find ample demonstration—and for Cusanus's entire treatise, not just for the specific part regarding the Donation of Constantine. In other words Valla's knowledge of the *De concordantia catholica* in 1440 might have been the very reason for his writing on the Donation of Constantine. Actually, Valla makes use of its arguments for his own polemical purposes, and in so doing he figures as a rival to Cusanus himself. Elsewhere I have gathered the evidence concerning the relationship of the two texts.⁸ It is my intention here to discuss only the most meaningful and relevant of the similarities. From Cusanus, Valla extracts the substance of his arguments from canon law—a subject in which he had no first-hand knowledge. Most important in this regard is the demonstration that originally the supposed privilege had not been included by Gratian in the *Decretum* but rather placed among the so-called *paleae*, or additional interpolations of his pupil Paucapalea. But here Valla misunderstands Cusanus's text, reading "Palea" as the name of author of the fraudulent interpolation. Compare Cusanus: "Hence he who afterwards added it treated the fabricated document as an addition [*pro palea ... posuit*]"; and Valla: "And first I must accuse him,... he who added sections to the work of Gratian, not only of wickedness, but also of ignorance [for crediting to Gratian the insertion of a forged passage].... Some [*nonnulli*] say that he who added this chapter was called 'Palea.' "⁹ Given the rhetorical amplification

⁷ Compare Fubini, "Contestazioni quattrocentesche," 415f. See Nicholas of Cusa, *De concordantia catholica*, ed. G. Kallen, in his *Opera omnia*, XIV¹⁻⁴ (Hamburg, 1959²-1968), cited as "*De concordantia*."

⁸ Fubini, "Contestazioni," 403-16.

⁹ CUSANUS: "Unde qui postea addidit, pro palea illam confictam scripturam posuit" (*De concordantia*, III.2.300). VALLA: "Et ante omnia non modo ille, qui nonnulla ad opus Gratiani adiecit, improbitatis arguendus est, verum etiam inscitiae.... Nonnulli eum, qui hoc capitulum adiecit, aiunt vocatum Paleam" (Setz ed., 95; Coleman trans., 75, slightly altered).

and the above-mentioned misunderstanding, one notes in the *nonnulli* an actual citation of Cusanus.¹⁰

But the most important correspondence between the two texts, especially for the comparison of the two ideologies it presupposes, lies in the passages concerning the “Legend of Sylvester,” the hagiographic text of dubious canonical authority that Cusanus had identified as the source of the *Constitutum*: “Who would not believe the approved Jerome sooner than the writings of an unknown author which are called ‘apocryphal’ precisely because the author is not known?” In response to this passage Valla raises a new issue: “But I, to give my frank opinion, deny that the Legend of Sylvester is an apocryphal work, ... rather I think it false and not worth reading—in other parts as well as in what it has to say about the serpent and the bull and the leprosy, to refute which I have gone over much ground.”¹¹ (Consistent with this line of reasoning, Valla will sharply criticize the “apocryphal Gospels” for being filled with false stories and not just as works left out of the “canon” established by the Church.¹²)

¹⁰ Fubini, “Contestazioni quattrocentesche,” 411. Among the passages that testify to the dependence of Valla on Cusanus, I should like to note two others that offer the clearest indications. CUSANUS: “Relegi *omnes* quas potui *historias*, Augustini, Ambrosii ac *aliorum opuscula peritissimorum ... et nullam invenio concordantiam* ad ea quae de illa donatione leguntur” (*De concordantia*, III.2.295); VALLA: “Evolvantur *omnes* Latinae Graeciaeque *historiae*, citentur *ceteri auctores* qui de illis meminere temporibus, ac *neminem reperies in hac re ab alio discrepare* (Setz ed., 89; Coleman trans. 67).” Leaving aside rhetorical *variatio*, and looking out for the conceptual shifts I shall be discussing further on, the concepts and terms are in practice the same, and owe much more to Cusanus than to Valla, who adduces only Eutropius. For another case of clear dependence of Valla’s treatise on Cusanus’s *De concordantia catholica* that falls outside of Cusanus’s specific consideration of the Donation, see CUSANUS (*De concordantia*, II.34.252): “Nec ‘Cephas’ est Hebraeum, sed Syriacum, ut quidam dicunt.... Sic videtur quod ‘Cephas’ sit Graecum, quod Hebraice ‘Petrus’ eius interpretatio Latina vel Graeca, et non e converso, scilicet quod ‘Cephas’ sit Graecum, quod Hebraice ‘Petrus’ interpretetur”; VALLA (Setz ed., 153; Coleman trans. 155), refuting the current etymology (“Cephas dictus est eo quod in capite sit constitutus Apostolorum”), like Cusanus, says it is not a Greek name but “Hebraicum seu potius Syriacum, quod Graeci ‘Kephas’ scribunt, quod apud eos interpretatur ‘Petrus,’ non caput” (where in Valla’s *seu potius* there appears the uncertainty already manifest in Cusanus).

¹¹ CUSANUS: “Quis non crederet potius Hieronymo approbato, quam ignoti auctoris scripturis, quae apocryphae dicuntur quando auctor ignoratur?” (*De concordantia*, III.2.304); VALLA: “... Ego vero, ut ingenue feram sententiam, gesta Silvestri nego esse apocrypha,... sed falsa et indigna quae legantur existimo, cum vero in aliis, tum vero in eo quod narratur de dracone, de tauro, de lepra, propter quae refutanda tanta repetii” (Setz ed., 152; Coleman trans., 153, slightly altered).

¹² See Fubini, “Contestazioni,” 421, and Valla, *De falso credita*, ed. Setz, 151: “Et summus pontifex hos libros appellat apochryphos quasi nihil vitii sit nisi quod eorum ignoratur auctor; quasi credibilia sint quae narrantur; quasi sancta et ad confirmationem religionis pertinentia, ut iam non minus culpa sit penes hunc qui mala probat, quam penes illum qui mala excogitavit.”

We are now at the heart of the matter. That which for Cusanus, from a point of view that was both theologically and canonistically correct, was a distinction between “apocryphal” and “approved” texts, was instead for Valla a direct opposition between “true” and “false.” This was clearly not a matter of vocabulary. An apocryphal work, as Cusanus explained, was a text whose origins remained obscure, and therefore was not accepted by the authority of the Church within its accepted canon or body of doctrine (which did not exclude, however, the possibility that the apocryphal text might contain truths, which in the future “tradition” would be able to recognize and affirm).¹³ The distinction between “true” and “false” was instead a kind of decision that was strictly individual and rational, independent of institutions and of hierarchy. It was precisely as a function of such a distinction that Valla had written his *Dialectica* (or “opus dialectice et philosophie,” as he familiarly called it), whose radically simplified scheme of categories was supposed to have permitted him to grasp the truth of reason without mediation, beyond and against the imposing authoritative structure of scholasticism and the canon law.

With this we may return to “rhetoric”—or rather, to the current obsession with rhetoric. An opposition between rhetoric and dialectic similar to the opposition that was posed with such violence by Valla between truth and error—between sincerity and the lie—does not really exist *in rerum natura*, and certainly not in the major tradition of classical rhetoric personified in Aristotle, Cicero and Quintilian, the very tradition to which Valla, along with most of his contemporaries, referred. Rhetorical discourse *completes*, rather than opposes, logical discourse. So it was held by the long tradition of teaching and doctrine which, beginning with Aristotle (in response to Plato), had claimed for rhetoric its share of truth, believing that rhetoric integrated within its discipline (rather than denied) the mode of teaching that was properly philosophical. It is precisely on account of this integrating quality of its teaching that one can speak nowadays of its having a peculiar “mediating vocation.”¹⁴ Furthermore, by means of the notions of “persuasion” and “consensus,” rhetoric reconnects itself with those other notions, so enriched by medieval and scholastic developments, of “tradition” and “authority.” It is in this sense that medieval scholasticism can be represented as an immense

¹³ Fubini, “Contestazioni,” 408-10, and the bibliography there cited.

¹⁴ Compare Marc Fumaroli, *L'âge de l'éloquence. Rhétorique et “res literaria” de la Renaissance au seuil de l'époque classique* (Paris, 1994), 31. Elsewhere the author notes “la dette de Cicéron envers Aristote, qui le premier s'efforça de reconcilier philosophie et rhétorique séparées par Platon” (52). For important clarifications concerning Valla's notes on Quintilian (but also on the relation between rhetoric and philosophy in the *Institutio oratoria*) see L. Cesarini Martinelli, “Le postille di Lorenzo Valla all'*Institutio oratoria* di Quintiliano,” in *Lorenzo Valla e l'umanesimo italiano*, ed. Ottavio Besomi and Mariangela Regoliosi (Padua, 1986), 21-50, especially 34f. The author's complete critical edition of Valla's notes on Quintilian will be forthcoming shortly.

rhetorical *system*, being founded on *auctoritates* endowed, through institutional sanction, with a high level of credibility. That the argument from authority is a mode of rhetorical reasoning has been recently affirmed by Chaim Perelman.¹⁵

Naturally rhetoric is widely employed by Valla too, but in a way that is distinct from his philosophical and exegetical research. If logical discourse can be compared to the roots of a plant, rhetoric represents the branches and leaves, in a continuity of linguistic usage (“*diligens ratio disserendi*,” as Valla himself said) that admits no rigid disciplinary boundaries.¹⁶ Leaving aside the metaphor, the ample use of rhetorical instruments is for Valla the sign of a will to disseminate one’s own “truth,” in opposition to a Scholastic and official “truth”: “*ut errorem a mentibus hominum convellam*,” as he writes with words which betray a certain Enlightenment flavor *ante litteram*.¹⁷

It was instead the adversaries of Valla who opposed him with the arguments of a more traditional and orthodox rhetoric. Could he alone, as a “*persona privata*,” deny what had been accepted by illustrious men? And did not so great a consensus have already in itself the force of truth? (“*Et quae ab omnibus asseruntur non possunt omnino carere veritate*,” was written in the commentary on Gratian of Juan Torquemada, following the classical Aristotelian citation).¹⁸ More original was the response of an anonymous high prelate who was consulted about Valla’s treatise by a law professor at Bologna, Andrea Barbazza. The professor was struck by Valla’s linguistic investigation, which he thought a *subtilis inductio*, useful for whoever wished to proceed to the denial of the “validity” of the *Constitutum*. But naturally, for the Bolognese professor, this was a marginal argument (inductive in fact) with respect to traditional legal exegesis. And in any case he consulted the ecclesiastical dignitary on the question (*audivi a quodam magno sacerdote*), who responded thus: “You laymen have been deceived. Nonetheless, since God tolerates such a donation, we ourselves have all the

¹⁵ Chaim Perelman and Lucie Olbrechts-Tyteca, *The New Rhetoric: A Treatise on Argumentation*, trans. J. Wilkinson and P. Weaver (Notre Dame, Ind., 1969), 305-10. Norberto Bobbio, in the preface to the Italian edition (Turin, 1976), defines the position of the authors as follows (xix): “The theory of argumentation refuses straightforward antitheses. It shows that between absolute truth and non-truth there exists room for truths to be exposed to continual revision, thanks to the technique of adducing reasons for and against.”

¹⁶ Compare Fubini, “Contestazioni,” 427.

¹⁷ *Ibid.*, 411.

¹⁸ *Ibid.*, 428. And see also the *Antivalla*, attributed to Antonio Cortesi or to his son Alessandro: “*Quanquam, Pontifex Maxime, de hac re non ita dicam, ut a me defendi videantur quae tum egregie a sapientissimis definita viris, tum maximis suffulta rationibus, tum pontificum decretis confirmata, tum diuturna possessione stabilita, nulla alterius cuiusque ope indigeant*” (*ibid.*, 429). Giovanni Antonazzi, *Lorenzo Valla e la polemica sulla Donazione di Costantino, con testi inediti dei secoli XV-XVII* (Rome, 1985) is very useful on this theme.

more reason to tolerate it.” (*Vos layci estis decepti, nihilominus ex quo Deus tolerat talem donationem, multo ergo fortius nos illam tolerare debemus.*)¹⁹

Cynicism aside, the great dignitary was right. The *Constitutum Constantini* had acquired authority from being comprised within a body of doctrine at the foundations of which there were revealed truths. Valla for his part, in an entirely opposite manner, through the unheard-of accusation of falsehood,²⁰ had turned the denunciation of the “authenticity” of the *Constitutum* into a truly revolutionary instrument, one which he directed against an entire system of norms, beliefs, and culture. This was no small feat, even if we consider only its immediate impact on the discussion of political and jurisdictional issues. In a completely different (but not arbitrarily determined) context, the Reformation would later welcome and propagandize Valla’s work, recognizing in it a shared frontal attack on papal tradition and canonical norms.

Actually Valla is fully misunderstood when one leaves out of consideration his conscious, frontal attack on the methodological and normative strongholds of the scholastic system. That was the principal motive behind his *Dialectica*, which argued for a reasoned truth, established without mediation, beyond and distinct from traditions. When we consider that a contemporary jurist—and one who was favorably inclined—could characterize Valla’s arguments as mere *subtilis inductio*, it becomes easier for us to realize how in Valla’s humanism we see the affirmation of a culture that was incompatible with culture as it was then institutionalized, and we are better able to judge the historical importance of Valla himself and of his treatise against the Donation of Constantine.

University of Florence.

¹⁹ See Domenico Maffei, *La Donazione di Costantino nei giuristi medievali* (Milan, 1969), 316f.

²⁰ Precisely the “horribile et immane mendacium de donatione Constantini,” as Luther would later press Valla’s claim.